

Housing Association Criticized for Denying Citizen Access

Date: 03-07-2023

Decision

Private Companies

Serious Criticism

Complaint

Right to Access

The Data Protection Agency has expressed serious criticism in a case where a housing association refused to grant a resident access, as the housing association did not believe it was subject to the rules of the Public Access or Administration Act regarding access to documents.

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Summary

The Data Protection Agency has made a decision in a case where a resident complained that a housing association refused to provide access to the association's records concerning them in connection with house rules cases. The Data Protection Agency found reason to express serious criticism of the fact that the housing association only assessed the resident's request according to the rules of the Public Access and Administration Act regarding access to documents and that the housing association reserved the right to deny the resident access before the agency had made a decision in the case. The Data Protection Agency further found that there was no basis for overriding the housing association's assessment that a number of details about the complaining residents in the house rules cases could be exempted from the right to access. The housing association had assessed that the resident's interest in gaining insight into the identities of the complaining residents must yield to significant considerations for the protection of private interests. Here, the housing association emphasized the specific risk that the complaining residents would be subjected to further harassment if the resident were informed of their names.

Decision

The Data Protection Agency hereby returns to the case where [complainant] on April 22, 2022, complained to the agency that the Housing Association [X] (hereinafter [X]) has refused to grant the complainant access to her personal data.

1. Decision

After reviewing the case, the Data Protection Agency finds that [X]'s handling of the complainant's request for access did not occur in accordance with the General Data Protection Regulation [1] Article 12, paragraphs 2 and 3, as well as Article 15, paragraph 1, which gives the Data Protection Agency reason to express serious criticism. The Data Protection Agency further finds that there is no basis for overriding [X]'s assessment that a number of details can be exempted from access, cf. the Data Protection Act [2] § 22, paragraph 1. Below follows a more detailed review of the case and a justification for the Data Protection Agency's decision.

2. Case Presentation

It appears from the case that the complainant on March 31, 2022, requested [X] for access to their records concerning the complainant in connection with house rules cases, including copies of complaint letters, witness statements, documentation (including photos, video recordings, and material from surveillance).

[X] responded to the complainant's inquiry on April 11, 2022, where [X] refused to grant access with reference to the rules of the Public Access and Administration Act.

2.1. Complainant's Remarks

The complainant has generally stated that she has the right to full access to the records that [X] has concerning her in connection with house rules cases regarding the complainant, and that she had specified her request for access.

2.2. [X]'s Remarks

[X] has generally stated that the association does not possess photos, video recordings, and material from the surveillance of the complainant, which is why the request is limited to access to complaint letters, statements, and documentation in connection with the house rules case against the complainant.

[X] has further stated that it is the association's assessment that the complainant can gain access to complaint letters, statements, and documentation in connection with the house rules case against her, but only in anonymized form, so that it will not be possible for the complainant to identify which residents have complained about her. In this regard, [X] pointed out that the right of access only pertains to access to personal data concerning the data subject themselves, which is why the identities of individuals who complain to [X] are not considered to be information covered by the complainant's right of access. [X] has also referred to the Data Protection Act § 22, paragraph 1, as it is the association's assessment that the complainant's interest in information about the identities of the individuals must yield to their interest in ensuring the confidentiality of their identity for the sake of their safety and well-being. [X] refers to the fact that the complainant allegedly has harassed the relevant residents by, among other things, shouting at other residents, filming other residents, including their children, and throwing trash from the second floor. [X] has therefore assessed that there is a concrete, predominant, and imminent probability that the complainants will be subjected to further and more severe harassment if the complainant becomes aware of their identities.

[X] has further described that if the Data Protection Agency were to find that the complaining residents do not have the right to confidentiality, it would have the consequence that the residents would be reluctant to submit legitimate complaints, which could result in, among other things, harassing residents not being able to be evicted or have their leases terminated, as there would be no documentation of the relevant behavior with [X]. This would lead to [X] being unable to fulfill its obligations under the Tenancy Act § 80, paragraph 1, regarding the landlord's obligation to ensure that good order is maintained in the property and, if necessary, terminate the lease. [X] has finally stated that the association, in its response to the complainant's request for access on April 11, 2022,

****3. Justification for the Data Protection Authority's Decision****

3.1.

The Data Protection Authority assumes that the complaints concerning [X], which are covered by the complainant's request for insight, contain personal data about the complainant in the form of, among other things, the experiences of the complainant's neighbors regarding her behavior in the housing association.

[X] has furthermore stated in connection with the processing of the case by the Data Protection Authority that [X] has reserved the right not to grant the complainant insight until the authority has made a decision in the present case.

The Data Protection Authority finds that [X]'s handling of the complainant's request for insight has not been conducted in accordance with the General Data Protection Regulation (GDPR) Article 12, paragraphs 2 and 3, as well as Article 15, paragraph 1, which gives the Data Protection Authority reason to express serious criticism.

In this regard, the Data Protection Authority has particularly emphasized that [X] has refused to grant the complainant insight, referring to the fact that the association is not subject to the rules of the Public Access to Information Act or the Administration Act regarding access to documents, and that the association has thus not assessed to what extent the complainant could gain insight into her personal data under GDPR Article 15.

The Data Protection Authority has also noted that [X] still does not appear to have responded to the complainant's request for insight dated March 31, 2022, and that any complaints to the supervisory authority do not have suspensive effect, which means that the association can postpone the handling of, among other things, requests for insight.

The Data Protection Authority has taken note that [X] has stated that the association has reviewed its procedures for handling requests for insight, so that [X]'s employees will be familiar with how requests for insight should be handled in the future.

3.2.

It follows from GDPR Article 15, paragraph 1, letter g, that the data subject has the right to any available information about the source of the personal data if it is not collected from the data subject. It further follows from Article 15, paragraph 3, of the regulation that the data controller must provide a

copy of the personal data being processed.

However, GDPR Article 15, including paragraphs 1 and 3 of that provision, is not absolute.

It follows, among other things, from the Data Protection Act § 22, paragraph 1, that GDPR Article 15 does not apply if the data subject's interest in the information is found to be outweighed by compelling considerations of private interests, including the interest of the individual concerned.

Thus, there may be cases where a data controller is not obliged to provide a copy of the information processed about a data subject or to provide information about the source of the personal data.

From the specific remarks[3] to the Data Protection Act § 22, paragraph 1, it is stated, among other things:

"By using the term 'compelling' in the provision, it is indicated that an exception from the obligation to provide information and the right to insight can only be made where there is a significant risk that private interests will suffer substantial harm."

The application of, among other things, the Data Protection Act § 22, paragraph 1, whereby the data subject's right to insight is limited, requires that the data controller makes a specific assessment.

The data controller – in this case [X] – has some leeway to assess when an exception to the right of insight can be made. This is because it is typically the data controller who is familiar with the specific (factual) circumstances that could justify an exception to the right of insight.

[X] has stated to the Data Protection Authority that the association, based on a specific weighing of the opposing interests in the case, has concluded that the complainant's interest in insight into the identity of the complaining residents should yield to compelling considerations of private interests, cf. Data Protection Act § 22, paragraph 1.

The association has emphasized the specific risk that the complaining residents would be subjected to further harassment if the complainant were informed of their names.

The Data Protection Authority notes in this context that the authority, as a supervisory authority, can ensure that the considerations and/or interests that the data controller in this case has justified a limitation of the right to insight with are considerations and/or interests that are lawful to weigh according to data protection regulations.

However, the Data Protection Authority generally does not have special or better conditions than the data controller to assess which specific information it is necessary to exempt in order to safeguard a (legitimate) consideration or a (legitimate) interest.

The Data Protection Authority finds on this basis that the authority does not have grounds to override [X]'s assessment that compelling considerations for the complaining residents, according to [X], imply that the identity of the complaining residents can be exempted from the complainant's right to insight. The Data Protection Authority therefore finds that there are no grounds to override [X]'s assessment that the information in question can be exempted from insight, cf. Data Protection Act § 22, paragraph 1.

[1] Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)

[2] Act No. 502 of May 23, 2018, on supplementary provisions to the regulation on the protection of natural persons in relation to the processing of personal data and on the free movement of such data (Data Protection Act).

[3] Bill No. 68, FT 2017/18, the specific remarks to the bill's § 22